

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X **Index No.** _____
DERECK VELASQUEZ, Purchased _____
Plaintiff Plaintiff designates BRONX
County as the place of trial

- against -

The basis of the venue is
where the tort arose

**CITY OF NEW YORK,
STEVEN KENDRICK (Shield No. 05396)**

SUMMONS

Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
July 20, 2020

ERIC D. LEVY, ESQ.
Attorney for Plaintiff
930 Grand Concourse, Suite 1E
Bronx, New York 10451
(646) 755-8020

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY****DERECK VELASQUEZ,****Plaintiff,****Index No.
Complaint****- against -****CITY OF NEW YORK,
STEVEN KENDRICK (Shield No. 05396)****Defendants.**

Plaintiff DERECK VELASQUEZ, by his attorney ERIC D. LEVY, ESQ.,
principal, complaining of the Defendants, respectfully shows to this Court and alleges the
following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff DERECK VELASQUEZ
("MR. VELASQUEZ") was a resident of Bronx County, City and State of New York.

2. At all times hereinafter mentioned, Defendant THE CITY OF NEW
YORK ("CITY"), was and still is a municipal corporation organized and existing under
and by virtue of the laws of the State of New York.

3. At all times hereinafter mentioned, Defendant STEVEN KENDRICK,
("KENDRICK") was and still is a police officer employed by the Defendant CITY and
the NEW YORK CITY POLICE DEPARTMENT ("NYPD").

4. On and prior to March 22, 2019, KENDRICK was employed by Defendants CITY and NYPD and was assigned in the Borough and County of BRONX, City and State of New York.

5. The actions of KENDRICK described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendants CITY and NYPD.

BACKGROUND

6. On or about March 22, 2019, KENDRICK, acting as an agent, servant and employee of Defendants CITY and NYPD, without just cause or provocation, intentionally and falsely accused MR. VELASQUEZ of having committed the crime of Criminal Trespass in the Second Degree.

7. On or about March 22, 2019, Defendants, their agents, servants and/or employees, intentionally placed MR. VELASQUEZ under arrest without just cause or provocation and with reckless and negligent disregard for the truth.

8. On or about March 22, 2019, a criminal complaint was issued at the directive of Defendants, under docket No. 2019BX008013, and a criminal action against MR. VELASQUEZ was commenced.

9. After his arrest on March 22, 2019, MR. VELASQUEZ was detained by Defendants until he posted bail on or about April 9, 2019.

10. On or about November 13, 2019, MR. VELASQUEZ made a court appearance during which the criminal matter was dismissed and the records sealed.

11. As a result of the treatment of MR. VELASQUEZ by the Defendants, MR. VELASQUEZ was denied liberty by being falsely arrested and imprisoned for more than

18 days.

12. MR. VELASQUEZ suffered emotional injuries due to the conduct of the Defendants. As a result of being falsely arrested and detained for approximately 18 days, MR. VELASQUEZ suffered humiliation, fear for his safety and other emotional distress.

PROCEDURAL POSTURE

13. On April 19, 2019, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

14. More than thirty days have elapsed since service of said notice, and Defendant CITY has failed to pay or adjust the claim.

15. This action has been commenced within one year and ninety days after the cause of actions of Plaintiff accrued.

16. Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE ARREST

17. Paragraphs 1-16 are incorporated by reference as fully set forth herein.

18. On March 22, 2019 at approximately 10:15 p.m., while inside his friend's apartment building located at 751 E. 161st, BRONX County, New York, Defendant KENDRICK wrongfully touched, grabbed, handcuffed and seized MR. VELASQUEZ, in

an excessive manner about his person, causing MR. VELASQUEZ physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch Plaintiff. MR. VELASQUEZ was aware of his arrest and confinement as described in paragraphs 1-17, and he did not consent to that arrest or confinement, nor was it privileged by law.

19. As a result of being falsely arrested by the Defendants, MR. VELASQUEZ sustained multiple injuries. He was denied liberty and the ability to enjoy life for approximately four days. He also suffered emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

20. Paragraphs 1-19 are incorporated by reference as though fully set forth herein.

21. The Defendants, their agents, servants and employees, arrested and confined MR. VELASQUEZ, as described in paragraphs 1-20, and intended to confine MR. VELASQUEZ. MR. VELASQUEZ was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

22. As a result of being falsely imprisoned by the Defendants, MR. VELASQUEZ sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

THIRD CAUSE OF ACTION: ABUSE OF PROCESS

23. Paragraphs 1-22 are incorporated by reference as though fully set forth herein.

24. In arresting MR. VELASQUEZ, KENDRICK, acting in his capacity as an agent, servant and employee of Defendants CITY and NYPD, was motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

25. In arresting MR. VELASQUEZ, KENDRICK, acting in his capacity as the agent, servant and employee of Defendants CITY and NYPD, sought either a detriment to MR. VELASQUEZ or a collateral advantage to the Defendants that is outside of the legitimate ends of making an arrest; specifically, KENDRICK, arrested plaintiff in an effort to increase both his overtime pay and arrest statistics.

26. As a result of the abuse of process by the Defendants, MR. VELASQUEZ sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: MALICIOUS PROSECUTION

27. Paragraphs 1-26 are incorporated by reference as though fully set forth herein.

28. On or about March 22, 2019, and from that time until November 13, 2019, when Plaintiff's case was dismissed upon application of the District Attorney, the Defendants deliberately and maliciously prosecuted Plaintiff, an innocent man, without any probable cause whatsoever, by filing or causing a criminal complaint to be filed in the Criminal Court of the City of New York, BRONX County and offering sworn false

testimony at a pre-trial hearing, for the purpose of falsely accusing Plaintiff of violations of the criminal laws of the State of New York.

29. The Defendants, their agents, servants or employees failed to take reasonable steps to stop the prosecution of Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's Office to induce prosecution of Plaintiff. Specifically, Defendants withheld Brady information from the District Attorney, that other people arrested with Plaintiff took responsibility for the gun recovered from the trunk, and stated that it was theirs and Plaintiff had no way of knowing it was there.

30. The commencement of these criminal proceedings under Docket No. 2019BX008013 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.

31. As a result of being maliciously prosecuted by the Defendants, MR. VELASQUEZ was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution.

FIFTH CAUSE OF ACTION: NEGLIGENCE

32. Paragraphs 1-31 are incorporated by reference as though fully set forth herein.

33. At all times hereinafter mentioned, the aforesaid false arrest, false imprisonment, abuse of process and malicious prosecution were caused solely by the negligence of the Defendants, their agents, servants and/or employees.

34. As a result of the negligence of the Defendants, MR. VELASQUEZ

sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

SIXTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

35. Paragraphs 1-34 are incorporated by reference as though fully set forth herein.

36. Defendants CITY and NYPD, through its agents, servants and employees, had the responsibility for supervising, disciplining, evaluating and training KENDRICK, as well as all of the other NYPD officers involved in this matter.

37. Defendants CITY and NYPD have grossly failed to train and properly supervise its police officers, particularly the detectives and police officers involved herein, regarding the law of arrest, search and seizure.

38. Defendants CITY and NYPD were negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or sufficient cause.

39. The foregoing acts, omissions and systematic failures are customs and policies of the Defendants, which caused its police officers to falsely arrest, maliciously prosecute, illegally search and seize Plaintiff.

40. Defendants CITY and NYPD had the responsibility for supervising, disciplining, evaluating and training the police officers involved herein, including KENDRICK.

41. Defendants CITY and NYPD were negligent in supervising, disciplining, evaluating and training the police officers involved herein, including KENDRICK.

42. As a result of the negligence of Defendants CITY and NYPD and KENDRICK, MR. VELASQUEZ sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

SEVENTH CAUSE OF ACTION: NEGLIGENT HIRING

43. Paragraphs 1-42 are incorporated by reference as though fully set forth herein.

44. Defendants CITY and NYPD had the responsibility for hiring KENDRICK.

45. Defendants CITY and NYPD were negligent in hiring KENDRICK.

46. As a result of the negligence of the Defendants, MR. VELASQUEZ sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

EIGHTH CAUSE OF ACTION ASSAULT AND BATTERY

47. Paragraphs 1-46 are incorporated by reference as though fully set forth herein.

48. On March 22, 2019, at approximately 10:15 p.m., while inside his friend's apartment building located at 751 E. 161st, BRONX County, New York, Defendant KENDRICK wrongfully touched, grabbed, pushed, handcuffed and seized MR. VELASQUEZ, in an excessive manner about his person, causing MR. VELASQUEZ physical pain and mental suffering.

49. That on or about March 22, 2019, and while in the custody of the defendants in the County of BRONX, City of New York, the Plaintiff MR. VELASQUEZ was intentionally touched, grabbed, pushed, assaulted, violated, humiliated and handcuffed by KENDRICK, along with other New York City police officers who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

50. That on or about March 22, 2019, along with other New York City police officers their agents, servants and employees, acting as agents and on behalf of the CITY and NYPD within the scope of their employment, did intentionally, willfully and maliciously assault and batter MR. VELASQUEZ, in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to MR. VELASQUEZ and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner intentionally touched the plaintiff and/or made offensive bodily contact to MR. VELASQUEZ and caused such battery in and about his chest, body and limbs. At no time did MR. VELASQUEZ consent to the aforesaid assault and battery.

51. While not conceding that said arrest was lawful or made upon probable cause, the aforesaid intentional assault and battery during the arrest was excessive. The excessive force used, including but not limited to the pushing, shoving and grabbing of MR. VELASQUEZ, was an assault and battery beyond that which was necessary to make the arrest, specifically, KENDRICK tightened the handcuffs around Plaintiff's wrists unnecessarily tight and refused to loosen them even after being told by Plaintiff that they were causing him pain and suffering.

52. That by reason of the aforesaid intentional assault and battery committed by the defendants, their agents, servants and employees, in particular KENDRICK, along with other New York City police officers acting within the scope of their employment and authority and without any probable or reasonable cause, MR. VELASQUEZ suffered bodily injury in and about his body and limbs and suffered conscious pain and suffering, and that he was otherwise damaged.

NINTH CAUSE OF ACTION

53. Paragraphs 1-52 are incorporated by reference as though fully set forth herein.

54. Defendant KENDRICK was at all times relevant, a duly appointed and acting officer of the City of New York Police Department.

55. At all times mentioned herein, KENDRICK was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

56. Plaintiff is and at all times relevant herein, a citizen of the United States and brings this cause of action pursuant to 42 United States Code, section 1983 and 42 United States Code, section 1988.

57. Defendant CITY is a municipality duly incorporated under the laws of the State of New York.

58. On or about March 22, 2019 the Defendants, armed police, while

effectuating the seizure of the Plaintiff, did search, seize, assault and grab the person of Plaintiff without a court authorized arrest warrant. They did physically seize the person of Plaintiff during the arrest process in an unlawful and excessive manner. Plaintiff was falsely arrested and maliciously prosecuted without the Defendants possessing probable cause.

59. The above actions of the Defendants resulted in Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from malicious prosecution;
- f. Freedom from abuse of process.

60. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United State Constitution.

61. The direct and proximate result of the Defendants' acts are that Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, New York
July 20, 2020

Yours, etc.,

ERIC D. LEVY, ESQ.

Attorney for Plaintiff
930 Grand Concourse, Suite 1E
Bronx, NY 10451
646-755-8020

VERIFICATION

ERIC D. LEVY, affirms the following statements to be true under the penalties of perjury, pursuant to Rule 2016 of the CPLR:

I have read the foregoing SUMMONS AND COMPLAINT and know the contents thereof based upon a review of the file maintained in my office; that the same is true to my own knowledge except as to those matters therein stated to be alleged upon information and belief, and as to those matters, I believe them to be true.

I execute this Verification since I maintain my office in Bronx County and DERECK VELASQUEZ, is currently residing outside Bronx County.

Dated: July 20, 2020

/s/
ERIC D.LEVY, ESQ.

CERTIFICATION

I, ERIC D. LEVY, ESQ., certifies, that, to the best of my knowledge, information and belief, the presentation of the paper is not frivolous and, where the paper is an initiating pleading, that the matter was not obtained through illegal conduct or, if it was, that the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing fees and that the matter was not obtained in violation of DR 7-111. (22 N.Y.C.R.R. 130-1.1-a[b]).

/s/
ERIC D. LEVY, ESQ.